

22STCV17097 22STCV17097

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 22STCV17097 Hearing Date: July 28, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 28, 2026 TRIAL

DATE: Not Set

CASE: Noemi Coria v. General Motors LLC

CASE NO.: 22STCV17097

MOTION

FOR ATTORNEY FEES

MOVING PARTY: Plaintiff Noemi Coria

RESPONDING PARTY: Defendant General Motors LLC

CASE

HISTORY:

5/24/2022: Complaint

filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a lemon law action.

Plaintiff Noemi Coria moves for attorney fees.

TENTATIVE RULING:

Plaintiff's motion is GRANTED in part. The Court awards fees in the amount of \$22,130.

Plaintiff to give notice, unless waived.

DISCUSSION:

Legal Standard

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794 [emphasis added].) Thus, the statute includes a "reasonable attorney's fees" standard.

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the

nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Id.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.)

These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.

(Ibid.)

Motion for Attorney Fees

Plaintiff moves for an award of attorney fees in the amount of \$29,542.50, consisting of (1) \$20,434 in attorney fees for Quill & Arrow, LLP, (2) a multiplier enhancement of 1.25 on the attorney fees, for an additional amount of \$5,108.50, and (3) \$3,861 to review the Opposition, draft the Reply and attend the hearing on this motion.

As an initial matter, Defendant contends that Plaintiff's fee motion is untimely under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 and California Rules of Court, Rules 3.1385(b) and 3.1702. Defendant argues that this case settled in April 2025, when Plaintiff filed the Notice of Settlement, and Plaintiff did not file the motion 180 days after settlement. Defendant argues that as noted in *Hatlevig v. General Motors LLC*, *supra*, 118 Cal.App.5th 644, "[w]hen a case settles, 'a dismissal of the action generally follows as a matter of law'" (citing Cal. Rules of Court, rule 3.1385(b)), and a motion for attorneys' fees must be filed and served no later than 180 days after the entry of dismissal. (Id.)

California Rules of Court, Rule 3.1702 provides that a fee motion "must be served and filed within

the time for filing a notice of appeal under Rule 8.104 and 8.108 in an unlimited civil case”, which deadline ordinarily “falls 60 days after notice of entry of judgment or 180 days after entry of judgment, whichever is first.”

In *Hatlevig*, *Hatlevig's* counsel notified the court of the settlement and the court ordered a dismissal within 45 days, and later, the clerk generated a “NOTICE OF DISMISSAL BY COURT.” (*Id.*, at 647.) Unlike in *Hatlevig*, here, when Plaintiff filed a Notice of Settlement on April 16, 2025, the Court did not order a dismissal. The 180-day period runs from “entry of judgment” or dismissal, not when the Notice of Settlement has been filed. The dismissal was actually entered in March 13, 2026, making this motion, filed in June 2026, timely.

A. Entitlement to Attorney Fees

Plaintiff contends she is the prevailing party as the parties settled. The Court agrees and Defendant does not dispute this point. Plaintiff is thus the prevailing party in this action and entitled to a reasonable amount of attorney fees.

B. Reasonableness of Fees

i.

Reasonable Hourly Rate

“The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The experienced trial judge is the best judge of the value of professional services rendered in his court and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” (*Ketchum v. Moses* (2001) 24 C.4th 1122, 1132.)

Plaintiff

seeks to recover attorneys' fees for 10 different attorneys who worked on the case. Their hourly rates are as follows:

(1) Kevin

Jacobson (2022 and 2023 rate of \$500/hr. and 2026 rate of \$600/hr.); (2) David Derderian (2023 rate of \$350/hr.); (3) Chris Grigoryan (2023 rate of \$350/hr.); (4) Jennifer Guardado (2026 rate of \$425/hr.); (5) Daniel Nickfardjam (2023 rate of \$350/hr.); (6) Harry Terzian (2023 rate of \$350/hr.); (7) Matthew Treybig (2023 rate of \$425/hr.); (8) Siyun Yang (2023 rate of \$350/hr.); (9) Nicholas Yowarski (2022 rate of \$375/hr.; 2023 -2024 rate of \$395/hour, 2025 rate of \$475/hr., and 2026 rate of \$500/hr.); and (10) Derek Chipman (2026 rate of \$495/hr.)

Attorney Jacobson

attests to the legal experience and the reasonableness of the attorneys' rates. (Jacobson Decl. ¶¶ 48-65.) Jacobson attests to his own legal experience and the reasonableness of his rates. (Id., ¶¶ 3-4.)

Defendant

does not contest the hourly rates. However, Defendant takes issue with the amount of attorneys who worked on this case, arguing that Counsel's rotating wheel of attorneys resulted in excessive hours "billed" on routine tasks and duplication of efforts on a number of occasions. However, Defendant should specify which tasks were duplicative in order for the Court to make a ruling. Further, Plaintiff argues the majority of time billed was by three attorneys, Yowarski, Derderian and Terzian.

The Court

finds, based on the submitted evidence of the declaration of Jacobson, the Laffey Matrix (Jacobson Decl. ¶ 46, Ex. 40), that other courts have approved these rates (Id., ¶¶ 5-48; Exs. 1-39), and the Court's own experience, that Plaintiff's requested hourly rates are reasonable for attorneys with their experience. The range of rates charged in this matter by the attorneys is reasonable for attorneys of similar experience, in the same area, dealing with the same subject matter.

ii.

Reasonable Hours Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian

Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Plaintiff's fee recovery is based on 51.4 hours spent by her attorneys litigating this case through this motion. Plaintiff has submitted billing records. (Jacobson Decl., ¶ 102-104; Ex. 42.) At the rates identified above, Plaintiff's counsel represents that they are seeking a lodestar of \$20,434.

Defendant objects to tasks that Defendant argues were excessive and unreasonable based on Counsel's use of templates.

Upon review of Defendant's objections to the tasks and Plaintiff's billing, the Court finds the time billed for each task appears reasonable (except as noted below). Even if Plaintiff used templates, Counsel still needs to review and tailor them to this case, which takes time. As to the motions in limine, there were 18 filed, and each one was billed .20 of an hour, which is reasonable for templated motions in limine. The trial documents are also generally billed at .20 each one.

However, as to this fee motion, the Court agrees that 2.1 hours spent on preparing the fee motion (not including the lengthy declaration) is excessive considering Plaintiff did not yet know what Defendant would argue. Thus, the Court reduces one hour of billed time (i.e., \$495). However, the Court declines to cut the anticipated fees for the Reply. Defendant argues that the billed time for the motion compensates the time to review the Opposition, prepare the Reply, and attend the hearing. The Court disagrees.

Next, Defendant argues that excessive time was spent on file review/clerical and administrative tasks.

However, what Defendant characterizes as clerical tasks are actually attorney work. Examples include

reviewing the case file to prepare for various tasks, and revising repair order summary, providing case statuses, and reviewing hearing summary results.

As to Defendant's argument that

Plaintiff's counsel spent excessive time reading Defendant's discovery responses and document production, counsel spent .40 of an hour on reviewing Defendant's responses to form interrogatories, .90 of an hour on reviewing Defendant's responses to special interrogatories, .70 to review the responses to request for production, .60 to review the request for admissions, and 1.2 hours to review the documents. Plaintiff clarifies in the Reply that the documents were 668 pages, and the special interrogatories totaled 41 pages and 68 responses. Thus, the time spent appears reasonable.

Defendant argues that counsel spent

excessive time (5.2 hours, i.e., \$2,274) drafting and preparing for hearings on Order to Show Cause re: Dismissal on more than 15 dates. Defendant argues that counsel purposefully continued the dismissal of the case multiple times for more than two years after filing a notice of settlement due solely to Counsel's own failure to promptly file a motion for attorney's fees and memorandum of costs. In Reply, Plaintiff argues that GM could have easily made a reasonable fee demand to resolve this case at any point after settlement but notable chose not to. However, Plaintiff could have filed the motion sooner. The Court notes that as early as February 16, 2024, Plaintiff's counsel noted in the declaration for the OSC that counsel intended to file a motion for attorney fees. Thus, any of the fees for attending the OSC re: Dismissal hearing after February 16, 2024 were not reasonably incurred. As such, the Court deducts \$1,670 from the fees.

The remainder of the challenged
billing appear reasonable.

Having analyzed the motions, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case, to limit any excessive fees, is \$18,269, plus \$3,861 to review the Opposition, draft the Reply and attend the hearing on this motion, for a total of \$22,130.

C. Multiplier

While the

lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other *Serrano* factors to the extent these are already included with the lodestar. (*Ketchum*, supra, 24 Cal. 4th at 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1139.)

Plaintiff requests a lodestar multiplier enhancement of 1.25 in the additional amount of \$5,108.50 on the ground that the law firm undertook representation of Plaintiff on a contingency basis – thus, enduring substantial risks, and obtained an excellent outcome.

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. This is a straightforward lemon law case. Nothing before the Court indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. While Plaintiff argues that counsel accepted the case only on a contingency basis, the Court finds that such consideration and risk is already included within the lodestar amount. That is because the substantial hourly rates allowed for by the court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

CONCLUSION:

Accordingly, Plaintiff's motion is

GRANTED in part. The Court awards Plaintiff's counsel fees in the amount of \$22,130.

IT IS SO ORDERED.

Dated: July 28, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.